

MEMORANDUM

TO: Georgia Cash, District I Supervisor
FROM: Brian Wood, Hydro Extraordinaire
SUBJECT: Mountain Cement Company (MCC), Permit 658, Weaver Quarry, Annual Report
DATE: June 18, 1997

Introduction

This is the second round of review for the 1996-1997 Annual Report. All responses were found to be acceptable.

Comments

- 1.0 Response acceptable. No topsoil or overburden stockpiles were constructed during this Annual Report Period. Any topsoil salvaged during the construction of stream crossings was replaced along the cut slopes of the entrance to the crossing. **(BW)**
- 2.0 Response acceptable. MCC has illustrated the culvert locations on the Annual Report Map as requested. **(BW)**
- 3.0 Response acceptable. MCC has oriented the Annual Report Map and included a legend as requested. **(BW)**
- 4.0 No response was required.



**MOUNTAIN
CEMENT COMPANY**

5 Sand Creek Rd.
Laramie, Wyoming 82070
(307) 745-4879

June 15, 1997



Mr. Brian Wood
Wyoming Department of Environmental Quality
Land Quality Division
Herschler Bldg. - 3rd Floor
122 West 25th Street
Cheyenne, WY 82002

Dear Mr. Wood,

Mountain Cement company is in receipt of your letter dated May 28 and the memorandum dated May 27. These documents request additional information regarding Mountain Cement Company's annual report for the Weaver Quarry, Permit 658. The following are MCC's responses to your memorandum.

1. The Annual Report Map provided with the annual report does not illustrate the locations of the topsoil and overburden piles since none had been constructed at the time of the report. These will be shown on the next annual report as requested. MCC will also enlarge the scale of the map to better illustrate these locations. The 2.6 acres of disturbance listed in Part III, Section C represents the road into the site. The 500 cubic yards of topsoil listed in Part III, Section D are incorporated into the outside edges of the entrance road and can therefore not be adequately shown. This should have been explained in the report but was inadvertently left out.
2. The locations of the two culverts are listed on the report. The map has been modified to reflect the locations. A larger scale map with the culvert locations will be sent with the next annual report. Since no actual mining has taken place, it was believed that the map provided with the report would be sufficient.
3. The legend for the map has been modified and the map orientated.
4. Thanks for your reminder. This will be accomplished.

The revised map has been attached. Please either attach this to the annual report and remove the original map or add this letter and map to the document file.

Thank you for your review and please call if you should have more questions.

Sincerely,

Frank Plummer
Environmental and Safety Manager

Attachments

THE STATE



OF WYOMING

JIM GERINGER
GOVERNOR



Department of Environmental Quality

Herschler Building • 122 West 25th Street • Cheyenne, Wyoming 82002

ADMINISTRATION (307) 777-7758 FAX 777-7682	ABANDONED MINES (307) 777-6145 FAX 634-0799	AIR QUALITY (307) 777-7391 FAX 777-5616	INDUSTRIAL SITING (307) 777-7368 FAX 777-6937	LAND QUALITY (307) 777-7756 FAX 634-0799	SOLID & HAZARDOUS WASTE (307) 777-7752 FAX 777-5973	WATER QUALITY (307) 777-7781 FAX 777-5973
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May 28, 1997

Mountain Cement Company
Attn: Frank Plummer
5 Sand Creek Road
Laramie, WY 82070

RE: 1996-97 Annual Report Review, Permit 658, Mountain Cement Company (MCC)

Dear Frank:

The Land Quality Division has reviewed the above referenced annual report and has deemed the annual report as incomplete. Please review the attached comments.

Should you have any questions in regard to the areas identified as incomplete, you may contact Brian Wood directly at (307) 777-6772 or me.

Sincerely,

Georgia A. Cash
District I Supervisor
Land Quality Division

Enclosure

MEMORANDUM

To: Georgia Cash, District I Supervisor
From: Brian Wood, Surface Water Hydrologist
Date: May 27, 1997
Subject: Mountain Cement Company (MCC), Permit 658, Weaver Quarry Annual Report

INTRODUCTION

This is first round of technical review of the 1996-1997 Annual Report for Permit 658, Weaver Quarry. The Weaver Quarry has seen minimal disturbance over the annual report period. Activities have been primarily concerned with the construction of an entrance road and two stream crossing. The total amount of material stockpiled during the report period was 1300 cubic yards (500 cu. yds. of topsoil and 800 cu. yds. of overburden). No evaluation of the adequacy of the Reclamation Performance Bond was performed and should be completed by District I staff. The review resulted in four comments being generated.

COMMENTS

1. Please illustrate the locations of the topsoil and overburden stockpiles on the Annual Report map as requested under Part III, Sections C and D of the Annual Report Form. **(BW)**
2. Please clearly identify the culvert locations with an appropriate symbol on the Annual Report map. **(BW)**
3. The Annual Report map should be oriented and have a complete legend. For example, the fence symbol should be identified. In addition, symbols could be used for topsoil and overburden stockpiles, culverts, detention ponds, etc. Please make the appropriate corrections to the Annual Report map **(BW)**
4. MCC should construct toe ditches around all stockpiles as soon site conditions permit to avoid material loss and to avoid increased sediment loading during runoff events. No response is necessary **(BW)**



5 Sand Creek Rd.
Laramie, Wyoming 82070
(307) 745-4879

GAC 3/3/97
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copy to
BW ✓

GAC ✓

re
3-4-97

FEBRUARY 27, 1997

Ms. Georgia Cash
Wyoming Department of Environmental Quality
Land Quality Division
Herschler Bldg. - 3rd Floor
122 West 25th Street
Cheyenne, WY 82002

Dear Ms. Cash:

Please find attached annual mine reports for permit Nos. 297C, 298C, 299C, 300C and 658. Mine reports for 297C, 299C and 300C have been completed on small mine report formats since these quarries have not had sufficient activity to be considered large mine operations. Mine reports for 297C and 658 have been completed on a large mine report format since these are or will be large mine operations.

Please call me if you should have questions regarding these reports at (307) 745-4879.

Sincerely,

Frank Plummer
Environmental and Safety Manager

Attachments



**MOUNTAIN CEMENT COMPANY
PERMIT 658 - WEAVER LIMESTONE QUARRY**

ANNUAL REPORT

AND

MINE AND RECLAMATION PLANS

MARCH 1, 1996 - FEBRUARY 28, 1997

SUBMITTED TO:

**WYOMING DEPARTMENT OF ENVIRONMENTAL QUALITY
LAND QUALITY DIVISION
HERSCHLER BUILDING
CHEYENNE, WYOMING**

PREPARED BY:

**MOUNTAIN CEMENT COMPANY
5 SAND CREEK ROAD
LARAMIE, WYOMING
(307) 745-4879**



Permit No. 658

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APPENDIX

Annual Report Map, March 1, 1996 - February 29, 1997



Land Quality Division
Districts I, II & III
Required Annual Report Information

FOR LARGE MINING OPERATIONS

RE: Wyoming Environmental Quality as Amended §35-11-411, Annual Report

I.

A.	Name of Permittee.	MOUNTAIN CEMENT CO.
B.	Address.	5 SAND CREEK ROAD
C.	Mining Permit Number	658
D.	Date of Permit Issuance (and any Amendment).	See attached
E.	Mineral(s) Mined.	LIMESTONE
F.	State and Federal Mineral Lease Numbers.	NONE

II. Time period covered by the report. **MARCH 1, 1996 TO FEBURARY 28, 1997**

III. Mining:

- A. Tabulate acreage disturbed (by pits, roads, facilities, etc.) during the report period and illustrate on map.
2.6 acres disturbed in 1997 for an entrance road
- B. Tabulate acreage affected to date by years and illustrate on map.
2.6 acres disturbed as of February 1997
12 of projected disturbance in 1998
2.6 acres total since mine start-up
- c) Tabulate all topsoil stockpile volumes, dated of stockpiling and illustrate on map.
500 CY 1997
- d) Tabulate all out-of-pit spoil volumes, dates of placement and illustrate on map.
800 CY 1997
800 CY total since mine start-up
- e) Tabulate quantity of commodity mined by years.
0 tons limestone mined 1997
0 tons limestone since mine start-up
- f) Described any new construction during the report period and illustrate on map; include:
1. Shop facilities, erection sites. **None**
 2. Roads. **Approximately 2800 feet of road has been constructed to the site.**
 3. Culverts. **(2) 48" culverts crossing Harney Creek and one 18" culvert at entrance off Highway 287 have been installed.**



4. Diversion ditches, collector ditches, interceptor ditches, etc. **None**
5. Sediment ponds, containment ponds. **None**
6. Monitoring sites. **None**

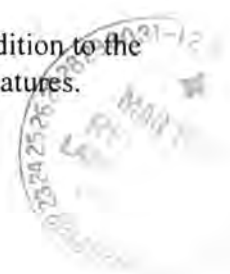
g) Describe any environmental problem areas and a proposed plan for mitigating them – illustrate on map; include:

1. Pit stability problems. **None**
2. Subsidence. **None**
3. Accidental water discharge, dam failure, etc. **None**
4. Slumping or sliding. **None**
5. Revegetation problem areas. **None**

4. Reclamation:

- A. Tabulate the acreage completed during the report period and illustrate on map. Distinguish between: **None completed this report period.**
 1. Backfilled, graded, and contoured. Including date of approval for coal permits.
 2. Topsoiled.
 3. Seeded.
 4. Reseeded.
 5. Indicate where special construction or reclamation practices were used such as for sand bodies or alluvial material.
- B. Submit a map showing the reconstructed contours. The map must be the same scale and contour interval as the PMT map in the approved permit. **None completed.**
- C. Tabulate acreage reclaimed (seeded with permanent seed mix) to date by years and illustrate on map. **See "Annual Report Map".**
- D. Describe reclamation procedures used during the report period: **No reclamation occurred during this report period.**
 1. Depth of topsoil applied. Indicate whether from stockpile or directly applied.
 2. Type of seed is used for seeding during the report period.
 3. Dates of seeding during the report period.
 4. Seeding procedures used.
 5. Rate of seed application.
 6. Type and rate of any fertilizer applied.
 7. Type and rate of mulch applied.
 8. Rate of irrigation water applied.
 9. Any deviations to the approved reclamation plan including, in addition to the items, above, changes to the contour or location of post mining features.

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E. Describe results of previous revegetation efforts; include:

1. Types of seed that have germinated and are growing. **None**
2. Types of seed that are not growing successfully. **None**
3. Areas experiencing problems with weeds and weed types. **None**
4. Significant erosional problems. **None**
5. Areas of unsuitable overburden on the surface. **None**
6. Procedures used or proposed to correct these problems. **N/A**

F. Summarize the actual reclamation costs incurred during the report period. Costs should be itemized for each operation (i.e. grading, topsoil replacement, seeding, etc.) and for each type of disturbance (i.e. spoil, haul roads, facilities removal, etc.) on a per-acre basis. **None**

5. Describe in detail mining plans for the coming year including revised time schedules and all proposed deviations from previously approved plans. Acreages should be tabulated and illustrated on a map. **See Mine Plan report and Annual Report Map.**
6. Describe in detail reclamation plans for the coming year including revised time schedules and deviations from previously approved plans. Acreages should be tabulated and illustrated on a map. **See Reclamation Plan Report.**

NOTE:

On items 5 and 6 above, any proposed deviation from the approved mine and reclamation plan must be described in detail. The proposed mining and reclamation plans will be reviewed and the operator will be notified if further information is required. "Significant" deviations will require permit revision application (Form 11) and public notice pursuant to Chapter VII Section 2 of Land Quality Division Noncoal Regulations.

7. Describe in detail all monitoring activities during the report period, summarize the data, describe procedures to correct any noted problems and deviations from previously approved methods, including:

- A. Groundwater analyses. **None**
- B. Surface water analyses and discharge data. **None**
- C. Precipitation data. **None**
- D. Subsidence monitoring. **None**
- E. Overburden analyses. **None**
- F. Topsoil quantities - compare calculated and actual. **N/A**
- G. Vegetation data. **None**
- H. Wildlife data. **None**
- I. A map showing and identifying monitoring locations. **None**



8. Operator's Reclamation Performance Bond Estimate as required by Wyoming Statute §35-11-417. Reclamation cost estimates should be itemized in detail to reflect the actual estimated costs of reclaiming all lands which have been affected to date and those lands to be affected during the next report period. Costs must reflect procedures as specified in the approved mine and reclamation plan. The estimated cost of dismantling and disposal of all facilities and structures must be included. Salvage value will not be used to offset bonding requirements. Reclamation projected for the coming year will not be used to offset bonding requirements. Pit backfill costs must reflect actual yardages to be moved. Actual yardages to be moved will reflect the removal or placement of additional material to correct any deviations between the PMT map and the map submitted for part 4.(b). **See Table II**
9. Supply any additional information as requested by the Division related to:
- A. Notices of violation. **None**
 - B. Orders. **None**
 - C. Permit stipulations; and **None**
 - D. Other special conditions. **None**
10. All drill holes used for immediate developmental expansion of the advancing pit(s) shall be tabulated by location and depth and shown on the mining plan map. Pursuant to W.S. §35-11-404(e), all drill holes used for exploration shall be reported to the LQD Abandoned Drill Hole Program Supervisor and the State Engineer. **None**

INTRODUCTION

Actual mining operations have not started at the Mountain Cement Company Weaver Quarry WDEQ/LQD Permit No. 658, during the past report period.

MINE PLAN

The following mine plan describes actual mining activities for the 1996-1997 report period and probable future mining operations for the 1997-1998 report period at the Mountain Cement Company Weaver Limestone Quarry, Permit 658.

Past Mining Activities: There has been no mining activity on site since the permit to mine has been issued. A road was constructed to enter the site and this has been shown on the Annual Report Map. All topsoil and overburden related to the road activity has been stockpiled, however toe ditching for the topsoil pile has not been completed since the pile has frozen. A fence has been erected around approximately one third of the proposed active mining site.

Future Mining Activities: Mountain Cement has tentative plans to actively mine the site in the fall of 1997 and this mining will begin in the north west corner of the permit area as described on the mining schedule in the permit application. Before mining can begin an access road needs to be constructed from the termination of the entrance road and water sampling must be completed. Additionally, a monthly meeting schedule with the residents needs to be established. Once mining activity begins, the mine plan will be followed as closely as possible.



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RECLAMATION PLAN

The following reclamation plan describes actual past reclamation and expected future efforts.

Past Reclamation Activities:

No reclamation has been started at this mine site to date.

Future Reclamation:

Future reclamation will follow the reclamation plan submitted with the permit application.

No reclamation activities are planned for the area until approximately two years after mining has occurred.

ESTIMATED RECLAMATION COSTS

Mountain Cement Company reclamation performance bond estimate for current disturbances and expected 1996-1997 report period disturbances is detailed in Table II.



TABLE I - Description of Weaver Quarry lands. (Includes acreage projected to be disturbed during the upcoming report period)

LAND DESCRIPTION	ACRES
PERMIT AREA	1372.5
AFFECTED AREA	2.6
PROECTED DISTURBANCE FOR 1997-1998 (Included in "NATIVE LANDS" below)	12.0
LANDS REQUIRING AREA BOND COST	14.6
LANDS REQUIRING FULL INCREMENTAL BOND COST	14.6
LANDS REQUIRING PARTIAL INCREMENTAL BOND COST (Reseeding)	0
LANDS WITH REQUESTED FULL BOND RELEASE, > 2 YEARS	0
LANDS W/ APPROVED FULL BOND RELEASE	0.0
SUBTOTAL(INCREMENTAL BOND TOTAL)	14.6
NATIVE LANDS	1369.9
TOTAL OF BONDED, BOND RELEASED AND NATIVE LANDS	1372.5



TABLE II - Estimated Reclamation Costs for Disturbances through February 28, 1997 and Projected Disturbances for the 1996-1997 Report Period, Weaver Quarry, LQD Permit No. 658.

BOND TYPE		APPENDIX LQD, GL 12	AVERAGE ONE-WAY HAUL, ft	UNIT	UNIT COST \$/unit	TOTAL, \$
Area Bond	Backfill + Recontouring	A,B,C,D, E,E1,F,G	750	800 CY	5% Res Grd 0.49	400
Incremental Bond	Misc. Overburden Redist.	A-G, E1	N/A	CY		
	Demolition (culverts)	H-K	N/A	3 UNITS	300.00	900
	Scarification or Ripping (Roads)	P, I1	N/A	2.6 AC	28.98	100
	Topsoil Redist.	C, D	750	500 CY	0.50	250
	Seeding only	Q	N/A	2.6 AC	200.00	520
	Seed, Mulch, Prepare soil + Fencing	Q	N/A	14.6 AC 0 ft	525.00 1.70	7665

SUBTOTAL \$ 9,835
15% DEQ CONTINGENCY \$ 990

Total Land Quality Bond Amount = \$22,000

TOTAL \$10,825

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TABLE III

Legal description of total Weaver limestone Quarry permit area and subsequent amendments

PERMIT NUMBER: 658
 COMPANY NAME: MOUNTAIN CEMENT COMPANY
 ADDRESS: 5 SAND CREEK ROAD, LARAMIE, WYOMING 82070
 PHONE NUMBER: (307) 745-4879
 PERMIT LOCATION: LARAMIE, WYOMING
 COMMODITY MINED: LIMESTONE
 TYPE OF MINING: OPEN PIT
 BOND: SURETY \$22,000

ORIGINAL APPLICATION Approved: February 29, 1996

	DATE APPROVED	ACRES APPROVED (PERMIT)	ACRES AFFECTED	CORRESPONDING SECTION IN THE PERMIT MINE PLAN
ORIGINAL PERMIT 658	2/29/96	1372.5	2.6	I
TOTALS		1372.5	2.6	



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TABLE IV - Land owners of record, March 1996, listed by section

SECTION	LAND OWNER	ACRES
26	MCC	
	WEAVER	
35	MCC	
	WEAVER	
	TOTAL	1372.5



**MOUNTAIN CEMENT COMPANY
PERMIT 658 - WEAVER LIMESTONE QUARRY**

ANNUAL REPORT

AND

MINE AND RECLAMATION PLANS

MARCH 1, 1996 - FEBRUARY 28, 1997

SUBMITTED TO:

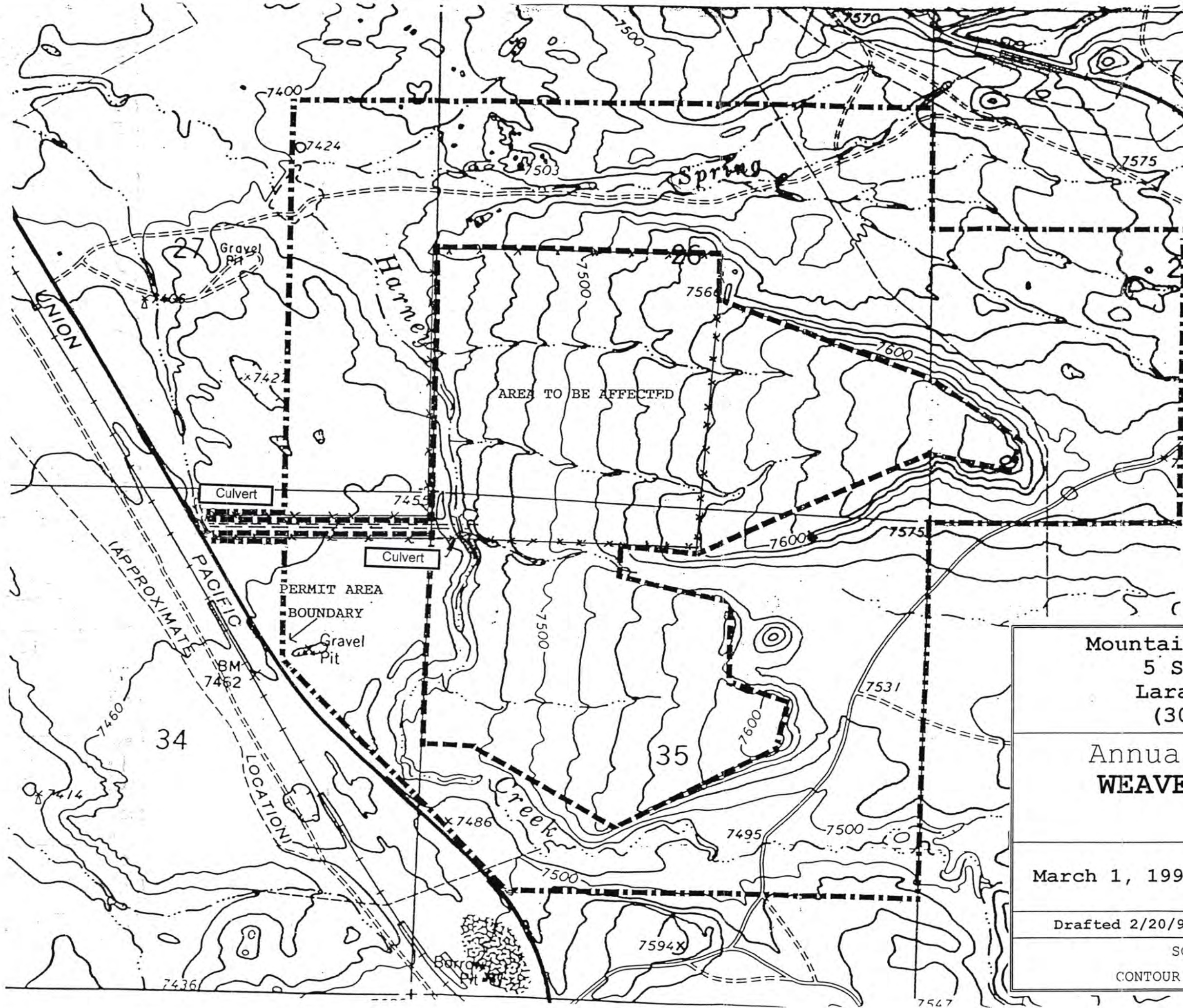
**WYOMING DEPARTMENT OF ENVIRONMENTAL QUALITY
LAND QUALITY DIVISION
HERSCHLER BUILDING
CHEYENNE, WYOMING**

PREPARED BY:

**MOUNTAIN CEMENT COMPANY
5 SAND CREEK ROAD
LARAMIE, WYOMING
(307) 745-4879**



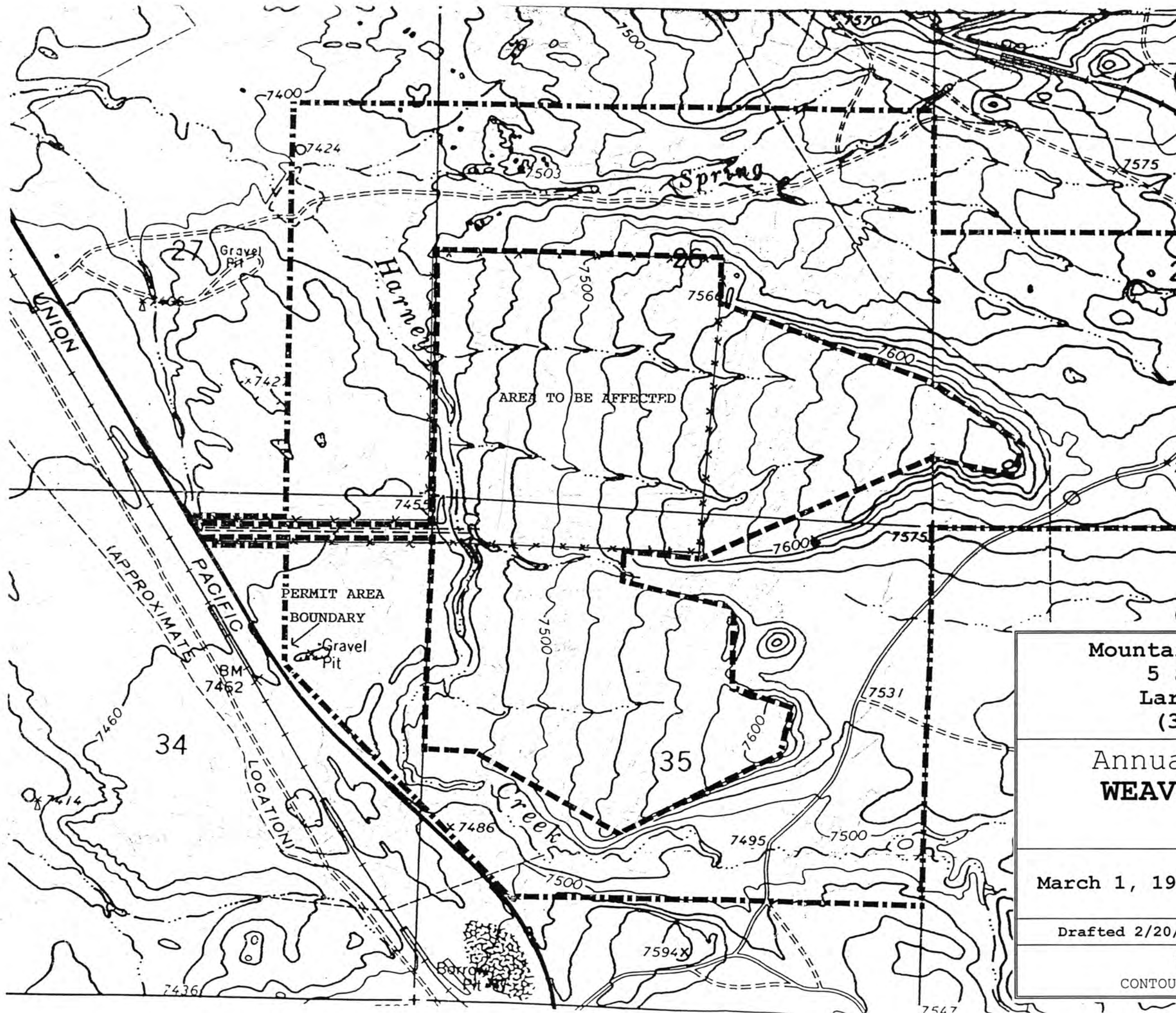
Permit No. 658



- Permit Area Boundary
- Affected Area Boundary
- ||| Culvert
- x-x- Fence Line

T14N R73W
Scale 1"=1000'
C.I.=20'

Mountain Cement Company 5 Sand Creek Rd Laramie, Wyoming (307) 745-4879
Annual Report Map WEAVER LIMESTONE 658
March 1, 1996 to February 28, 1997
Drafted 2/20/97 By DL&FP Revised 2/20/97
SCALE 1" = 1000' CONTOUR INTERVAL 10' AND 20'



Permit No. 658

- Permit Area Boundary
- Affected Area Boundary

SUPERSEDED

T14N R73W
Scale 1"=1000'
C.I.=20'

Mountain Cement Company 5 Sand Creek Rd Laramie, Wyoming (307) 745-4879
Annual Report Map WEAVER LIMESTONE 658
March 1, 1996 to February 28, 1997
Drafted 2/20/97 By DL&FP Revised 2/20/97
SCALE 1" = 1000' CONTOUR INTERVAL 10' AND 20'